

Court No. - 29

Case :- WRIT - C No. - 3418 of 2021

Petitioner :- Sameer Ahamad

Respondent :- Managing Director Purvanchal Electricity Vitaran Nigam Ltd. And 4 Others

Counsel for Petitioner :- Sanjay Maurya

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

Heard Shri Sanjay Maurya for the petitioner and Shri Narendra Kumar Tiwari for respondent nos. 1 to 4.

This writ petition has been filed seeking a mandamus directing the respondents not to disconnect the electricity connection of the petitioner.

It is submitted on behalf of the petitioner that after the death of grandfather of the petitioner, name of the petitioner's father in the ancestral House No. 109/138, Neem Sarai, Tehsil - Sadar, District - Prayagraj, was mutated in the Nagar Nigam. Thereafter, the entire property was divided in a family partition amongst the petitioner and his brothers. The petitioner made constructions over his share and obtained electricity connection. Since there was some family dispute, petitioner and others filed Civil Suit No. 233 of 2020 claiming permanent injunction, which is still pending.

It is submitted that on 07.01.2021, a complaint was made by respondent no. 5 before respondent no. 4 about the pendency of civil suit, whereupon, the employees of the Corporation approached the petitioner for disconnection of the electricity connection. A report dated 16.01.2021 has been submitted by respondent no. 3 stating that since there is a family dispute, electricity connection would be disconnected in case any irregularity is found in the grant of connection. It is also alleged that a civil suit is pending between the family members.

Learned counsel for the petitioner submits that for continuance of electricity connection, a 'No Objection Certificate' is required from co-sharers, failing which the electricity supply may be disconnected. He apprehends that as family dispute is going on amongst the family members, 'NOC' may not be obtained and in that event, petitioner's electricity supply may be disconnected. It is lastly submitted that for redressal of his grievance, the petitioner has made a representation dated 18.01.2021 and a direction may be given for its expeditious disposal.

Shri Tiwari for the Corporation submits that as there is a dispute with regard to house in question, petitioner may submit an indemnity, along with completion of other formalities, as per the provisions of U.P. Electricity Supply Code, 2005. He further submits that no useful purpose would be served by keeping this writ petition pending and the same be disposed of by giving appropriate direction to the respondent concerned.

This writ petition is disposed of with the direction to the respondent no. 4 to consider and decide the pending representation dated 18.01.2021, or a fresh representation as the case may be, by a reasoned and speaking order, as expeditiously as possible, preferably, within six weeks from the date of production of a copy of this order, in accordance with law.

Till the disposal of the petitioner's application, electricity connection shall not be disconnected.

Order Date :- 4.2.2021

Amit Mishra